

HOUSE No. 2532

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to therapeutic psilocybin treatment centers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/17/2025</i>

HOUSE No. 2532

By Representative Sabadosa of Northampton, a petition (accompanied by bill, House, No. 2532) of Lindsay N. Sabadosa for legislation to establish a non profit therapeutic center pilot program offering psilocybin treatment for mental and physical health needs. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to therapeutic psilocybin treatment centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, there shall be a
2 5-site pilot program with locations in western Massachusetts, central Massachusetts, the North
3 Shore area, the South Shore area, and the Metro Boston area, establishing non profit therapeutic
4 centers offering psilocybin treatment for mental and physical health needs.

5 The department of public health in consultation with an advisory board as set forth in
6 Section 2 shall promulgate rules and regulations necessary for the operation of a therapeutic
7 psilocybin center, including but not limited to, establishing a process to apply for licensure.
8 Entities that are run by medical professionals, psychiatrists, psychologists, and therapists who (i)
9 are properly trained facilitators with experience working with psilocybin or (ii) obtain training in
10 administering psilocybin shall be eligible to apply for licensure to operate a therapeutic
11 psilocybin center. Approval from the local board of health to participate in the pilot program

shall be required before an entity may apply for licensure to operate a therapeutic psilocybin center.

The department of public health shall send notification and an explanation of the department's approval or denial of licensure, in writing, within 45 days of a completed application to the applicant and to the local board of health where the therapeutic psilocybin center would be located. A denial of licensure shall not prohibit an entity from submitting a future application at any time.

To be considered for licensure, a therapeutic psilocybin center shall, at a minimum:

(1) provide a suitable space where participants may receive treatment with psilocybin under the supervision of a medical professional;

(2) provide adequate staffing by medical and mental health professionals, psychiatrists, therapists, or other staff who have all been trained in the use of psilocybin for therapeutic purposes;

(3) provide education on treatment with psilocybin for medical purposes;

(4) monitor participants and administer first aid, if needed;

(5) provide access or referrals to additional mental health services as appropriate;

(6) provide trainings for staff members to deliver psilocybin treatment offered by [??] or make available any trainings provided by the department of public health, if required;

(7) establish standard security and safety procedures in consultation with local law enforcement; and

(8) establish standard policies that facilitate communication and education with local businesses, community members, local law enforcement, and first responders;

(9) create a price structure for patients that ensures affordability and access

Notwithstanding any general or special law or rule or regulation to the contrary, the following persons shall not be arrested, charged, or prosecuted for any criminal offense, including, but not limited to, charges pursuant to sections 13, 32I, 34, 43 or 47 of chapter 94C of the General Laws, or be subject to any civil or administrative penalty, including seizure or forfeiture of data records, assets or property or disciplinary action by a professional licensing board, credentialing restriction, contractual liability, and action against clinical staff or other employment action, or be denied any right or privilege, solely for participation or involvement in a therapeutic psilocybin center licensed by the department of public health pursuant to this section: (i) a participant; (ii) a staff member or administrator of a licensed therapeutic psilocybin center, including a health-care professional, manager, or employee, (iii) a property owner who owns property at which a licensed therapeutic psilocybin center is located and operates, (iv) the entity operating the licensed therapeutic psilocybin center. Entering or exiting a licensed overdose therapeutic psilocybin center cannot serve as the basis for, or a fact contributing to the existence of, reasonable suspicion or probable cause to conduct a search or seizure.

The department of public health shall submit a report to the clerks of the senate and house of representatives and to the senate and house chairs of the joint committee on mental health, substance use and recovery. The report shall include site-specific and aggregate data for all licensed therapeutic psilocybin center including but not limited to: (i) number of participant visits; (ii) number of referrals to additional mental health treatment, (iii) number of patients who

required to further mental health treatment following treatment with psilocybin, (iv) financial reports, and (v) any adverse events that occurred as a result of treatment with psilocybin. The report shall be submitted no later than 18 months after implementation of the pilot program, and annually thereafter.

SECTION 2. The department of public of health shall promulgate regulations to implement

section 1 within 1 year of the effective date of this act in consultation with an advisory board composed of medical and mental health professionals, veterans and other individuals with lived experience using psilocybin, individuals with experience in facilitating psilocybin sessions, and psilocybin researchers.